

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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CHARLOTTE NURSE and MICHAEL NURSE,  
an infant by his mother and  
natural guardian, CHARLOTTE NURSE,

Plaintiffs,

-against-

STEPHEN BRUMAIRE, MARLYN J. ARMAND,  
and MARIE J. ARMAND,

Defendants.

-----X

**TO THE ABOVE NAMED DEFENDANTS:**

**SUMMONS**

Plaintiffs designate  
Kings County as a  
place of trial  
Basis of venue is  
plaintiffs' residence

Plaintiffs reside at  
126 East 53<sup>rd</sup> Street  
Brooklyn, NY 11203

Index No.: /2017  
Date Filed: 06/15/2017

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on plaintiffs' attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made upon you personally within the State, or within thirty (30) days after completion of service where service is made in any other manner, and in case of your failure to appear or answer, Judgment shall be taken against you by default for the relief stated in the complaint.

Dated: Mount Vernon, New York  
June 15, 2017

Yours, etc.

**DeANGELIS & HAFIZ**



**MARK S. DeANGELIS, ESQ.**

Attorneys for Plaintiffs  
Office & P.O. Address  
**22 WEST FIRST STREET  
SUITE 407  
MOUNT VERNON, NY 10550  
(914) 667-1188**

**Defendants' Addresses:**

**STEPHEN BRUMAIRE**

346 Legion Street

Brooklyn, New York 11212

and/or

c/o New York City Dept. of Corrections

Manhattan Detention Complex

125 White Street

New York, New York 10013

**MARLYN J. ARMAND**

927 Rockaway Avenue

Brooklyn, New York 11212

**MARIE J. ARMAND**

385 Sumpter Street

Brooklyn, New York 11233

and/or

74 East Suffolk Avenue

Central Islip, New York 11722

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CHARLOTTE NURSE and MICHAEL NURSE,  
an infant by his mother and  
natural guardian, CHARLOTTE NURSE,

Plaintiffs, VERIFIED COMPLAINT

-against- Index No.: /2017

STEPHEN BRUMAIRE, MARLYN J. ARMAND,  
and MARIE J. ARMAND,

Defendants.  
-----X

Plaintiffs, by their attorneys, DeANGELIS & HAFIZ,  
complaining of defendants, herein allege the following upon  
information and belief:

1. That at all times hereinafter mentioned, plaintiffs  
were and still are residents of the County of Kings, City and  
State of New York.

2. That at all times hereinafter mentioned, plaintiff  
CHARLOTTE NURSE was and still is the mother and natural guardian  
of infant plaintiff MICHAEL NURSE, with full right and authority  
to prosecute this action and is presently acting in such  
capacity.

3. That at all times hereinafter mentioned, defendant  
STEPHEN BRUMAIRE was and still is a resident of 346 Legion  
Street, Brooklyn, New York 11212 and/or c/o New York City  
Department of Corrections, Manhattan Detention Complex, 125 White

Street, New York, New York 10013.

4. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was and still is a resident of 927 Rockaway Avenue, Brooklyn, New York 11212.

5. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was and still is a resident of 385 Sumpter Street, Brooklyn, New York 11233 and/or 74 East Suffolk Avenue, Central Islip, New York 11722.

6. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was the registered owner of a 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

7. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was the titled owner of a 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

8. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was the lessor of a 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

9. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was the lessee of a 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

10. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND was the permissive user of a 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

11. That at all times hereinafter mentioned, defendant MARLYN J. ARMAND did leave the aforesaid 2007 motor vehicle bearing license plate number DLD1240, State of New York, unattended with the keys in said vehicle.

12. That at all times hereinafter mentioned, defendant STEPHEN BRUMAIRE was the operator of the aforesaid 2007 motor vehicle bearing license plate number DLD1240, State of New York, involved in the accident hereinafter described.

13. That at all times hereinafter mentioned, defendant STEPHEN BRUMAIRE operated the aforesaid motor vehicle with the express and/or implied permission, consent and knowledge of its owner, MARLYN J. ARMAND, defendant herein.

14. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the registered owner of a 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

15. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the titled owner of a 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

16. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the lessor of a 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

17. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the lessee of a 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

18. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the permissive user of a 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

19. That at all times hereinafter mentioned, defendant MARIE J. ARMAND was the operator of the aforesaid 2007 motor vehicle bearing license plate number EPJ9329, State of New York, involved in the accident hereinafter described.

20. That at all times hereinafter mentioned, Remsen Avenue, at or near its intersection with Rutland Road, in the County of Kings, City and State of New York, was and still is a public highway, street or roadway and the site of the accident herein.

21. That on the 16<sup>th</sup> day of May, 2016, the aforesaid motor vehicles came into violent contact with each other.

22. That on the 16<sup>th</sup> day of May, 2016, the aforesaid motor vehicles came into contact with each other.

23. That on the 16<sup>th</sup> day of May, 2016, following the aforesaid collision, one of the aforesaid motor vehicles came into violent contact with plaintiff CHARLOTTE NURSE, a pedestrian.

24. That on the 16<sup>th</sup> day of May, 2016, following the aforesaid collision, one of the aforesaid motor vehicles came into contact with plaintiff CHARLOTTE NURSE, a pedestrian.

25. The aforementioned accident was caused solely and wholly by reason of the negligence, carelessness and recklessness of defendants herein.

26. The aforementioned accident was a result of the negligence of defendants herein.

27. The limited liability provisions of CPLR §1601 do not apply pursuant to one or more of the exceptions of CPLR §1602.

***AS AND FOR A CAUSE OF ACTION ON BEHALF  
OF PLAINTIFF CHARLOTTE NURSE***

28. That plaintiffs repeat, reiterate, and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

29. That by reason of the foregoing, plaintiff CHARLOTTE NURSE was seriously injured.

30. That by reason of the foregoing, plaintiff CHARLOTTE NURSE was injured.

31. That by reason of the foregoing, plaintiff CHARLOTTE NURSE has sustained a serious injury, as defined in New York



State Insurance Law §5102(d).

32. That by reason of the foregoing, plaintiff CHARLOTTE NURSE has sustained economic loss greater than basic economic loss, as defined in New York State Insurance Law §5102(a).

33. That by reason of the foregoing, plaintiff CHARLOTTE NURSE has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A CAUSE OF ACTION ON BEHALF  
OF INFANT PLAINTIFF MICHAEL NURSE**

34. That plaintiffs repeat, reiterate, and reallege each of the foregoing allegations with the same force and effect as if more fully set forth at length herein.

35. As a result of the foregoing accident and the injuries sustained by plaintiff CHARLOTTE NURSE, infant plaintiff MICHAEL NURSE has been deprived of the love, comfort, solace, support, consortium, guidance, and companionship of his mother; her ability to render same having been impaired and depreciated.

36. That by reason of the foregoing, defendants have caused infant plaintiff MICHAEL NURSE to suffer severe emotional anxiety, distress, stress, and mental anguish.

37. That by reason of the foregoing, infant plaintiff MICHAEL NURSE has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

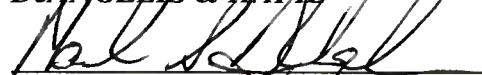


**WHEREFORE**, plaintiffs demand judgment against defendants  
in amounts to be determined upon the trial of this action  
together with the costs and disbursements of this action.

Dated: Mount Vernon, New York  
June 15, 2017

Yours, etc.

**DeANGELIS & HAFIZ**



**MARK S. DeANGELIS, ESQ.**

Attorneys for Plaintiffs

Office & P.O. Address

**22 WEST FIRST STREET**

**SUITE 407**

**MOUNT VERNON, NY 10550**

**(914) 667-1188**

ATTORNEY'S VERIFICATION

STATE OF NEW YORK        )  
                                  ss.:  
COUNTY OF WESTCHESTER)

I, the undersigned, am an attorney admitted to practice in the courts of New York State, and say that:

I am of counsel to the attorneys of record for plaintiffs.

I have read the annexed Complaint and know the contents thereof and the same is true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe it to be true. My belief, as to those matters therein not stated upon knowledge, is based upon the following:

Interviews and/or discussions with plaintiffs and papers and/or documents in the file.

The reason I make this verification instead of plaintiffs is that plaintiffs reside outside of the county from where DeANGELIS & HAFIZ maintains its office for the practice of law.

Dated: Mount Vernon, New York  
June 15, 2017

  
MARK S. DeANGELIS

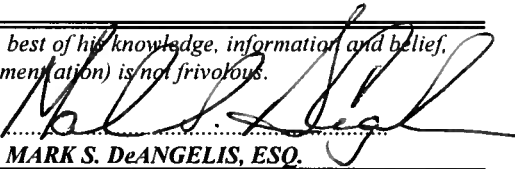
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Plaintiff,  
  
-against-  
  
STEPHEN BRUMAIRE, MARLYN J. ARMAND,  
and MARIE J. ARMAND,  
  
Defendants.

**SUMMONS AND VERIFIED COMPLAINT**

DeANGELIS & HAFIZ  
ATTORNEYS AT LAW  
22 WEST FIRST STREET  
SUITE 407  
MOUNT VERNON, N.Y. 10550

(914) 667-1188  
FAX (914) 667-0836

The undersigned attorney certifies pursuant to 22 NYCRR 130-1.1a that to the best of his knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the annexed document (ation) is not frivolous.

  
MARK S. DeANGELIS, ESQ.

Service of a copy of the within is hereby admitted.

Dated: \_\_\_\_\_  
Attorney(s)

Sir: - Please take notice  
☐ **NOTICE OF ENTRY**  
that the within is a true copy of a  
duly entered in the office of the within named on 20  
☐ **NOTICE OF SETTLEMENT**  
that an order of which the within is a true copy will be presented for  
settlement to the HON. one of the judges  
on the within named court, at on 20 at M.

Dated,  
  
Yours, etc.  
**DeANGELIS & HAFIZ**  
  
ATTORNEYS AT LAW  
22 WEST FIRST STREET  
SUITE 407  
MOUNT VERNON, N.Y. 10550